# Counsel Brief: Open-Source Call Defense Software

Project "anticall" (working name CallShield Network, not trademark-cleared) · github.com/Gr0wthHacker/anticall · Oct 27, 2026 · DRAFT, not legal advice

## What it is

Self-hostable, AGPL-3.0 software that (1) screens a user's own inbound calls, (2) helps the user send a documented do-not-call request to a **verified** company contact, and (3) builds an evidence file and drafts FTC/FCC/carrier complaints for the user to review and file. Pre-alpha; built on synthetic and mock telephony only.

> **Built-in limits:** no auto-redial or bulk dialing; no calls to caller-ID-only numbers; each outbound call needs a separate user authorization plus cooldown and daily caps; the AI has no dial tool; live speech processing, outbound AI, agency submission and community sharing are all **off by default**; no output ever says a violation is proven or states damages.

## Questions we need answered

1. **Outbound calls (TCPA / TSR / 47 USC 223).** Is a user-initiated, single-purpose opt-out call to a verified business line, placed by an AI voice that discloses it is automated, permissible? Under what conditions (consent, disclosures, time limits, attempt caps)? Is repeated follow-up by the same user lawful, and where is the line to harassment?
2. **Recording and live AI processing.** For inbound screening and outbound calls, what consent or notice is required, by state and across state lines, for (a) live speech-to-text, (b) saving audio, (c) saving transcripts, (d) sending audio to a remote AI vendor? Please fill the jurisdiction matrix (all states currently "UNKNOWN").
3. **Developer and operator exposure.** What liability attaches to the maintainer who publishes source, a self-hoster, and any future hosted operator? Is the disclaimer wording adequate, and are any statements overclaiming?
4. **Licensing.** Confirm AGPL-3.0-only versus alternatives (e.g. Apache-2.0); compatibility of third-party models, voices and code; whether a separate acceptable-use policy can apply to hosted services only.
5. **Evidence and complaints.** Are our evidence labels (observed / claimed / inferred / user-attested) and export wording acceptable? Review the filing attestation text, the FCC/FTC/carrier templates, and whether any agency offers an approved submission channel (we currently only do manual handoff).
6. **Privacy.** State privacy and consumer-rights obligations for call metadata and stored media; retention defaults (metadata 90d, audio/transcripts 30d); deletion limits and legal holds; the required operator privacy notice.
7. **Community sharing (later).** Defamation and false-attribution risk, minimum anonymity standards, takedown process.
8. **Entity, name, insurance.** Recommended entity structure, trademark clearance of the name, and insurance.
9. **Provider terms.** Do SIP and AI vendors permit automated/AI-voice calling under their terms?

## Decisions we need from counsel (open log D-001 to D-008)

| ID | Decision | Our prototype default |
|---|---|---|
| D-001 | First telephony transport/provider | Asterisk + generic SIP trunk behind an adapter |
| D-002 | Live speech-to-text consent gate by jurisdiction | Deny unless consent and jurisdiction allow |

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| D-003 | Hosted vs fully local processing | Local first |
| D-004 | AGPL-3.0-only vs permissive | AGPL-3.0-only (provisional) |
| D-005 | Incident-to-case match threshold | Conservative; human review for attribution |
| D-006 | FTC/FCC forms; any approved submission API | Manual handoff only |
| D-007 | Retention and deletion by jurisdiction | PRD design defaults |
| D-008 | Legal entity, trademark, insurance | None yet |

## Documents to review (all marked DRAFT in the repo)

- docs/legal/: acknowledgment-v1, filing-attestation-v1, recording-consent-matrix, regulatory-notes, counsel-checklist, release-gates
- Root: DISCLAIMER.md, ACCEPTABLE_USE.md, PRIVACY.md, LICENSE, SECURITY.md
- Full spec: docs/prd/PRD_v3.md (Sections 12, 19 and 21, Appendices A–F)

## What we need back

Written sign-off or required changes on each numbered question, a filled recording matrix, answers to D-001 to D-008, and a go/no-go per capability: **(a)** inbound screening, **(b)** live transcription, **(c)** recording, **(d)** outbound human-only call, **(e)** outbound AI call, **(f)** agency submission, **(g)** hosted service. Until then, none of these is enabled for real use.